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Provision of July 6, 2023
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THE GUARANTOR FOR THE PROTECTION OF PERSONAL DATA

IN THE meeting held today, attended by
Prof. Pasquale Stanzione, President, Prof.
Ginevra Cerrina Feroni, Vice President, Dr.
Agostino Ghiglia and Attorney Guido Scorza, members, and
Secretary General Fabio Mattei;

HAVING REGARD TO Regulation (EU) 2016/679 of the European Parliament
and of the Council of April 27, 2016, concerning
the protection of natural persons with regard to
the processing of personal data, as well as the free
movement of such data and repealing Directive
95/46/EC, "General Data Protection Regulation" (hereinafter, "Regulation");

HAVING REGARD TO Legislative Decree No. 196 of June 30, 2003, containing
"Code regarding the protection of personal data,
containing provisions for the adaptation
of the national legal system to Regulation (EU)
2016/679 of the European Parliament and of the Council, of
April 27, 2016, concerning the protection of
natural persons with regard to the processing of personal data,
as well as the free movement of such data and repealing
Directive 95/46/EC (hereinafter "Code");

HAVING REGARD TO Regulation No. 1/2019 concerning
internal procedures of external relevance,
aimed at carrying out the tasks and
exercising the powers assigned to the Guarantor for the
protection of personal data, approved by
Resolution No. 98 of April 4, 2019, published in
G.U. No. 106 of May 8, 2019 and on www.gpdp.it, doc.
web n. 9107633 (hereinafter "Guarantor Regulation
No. 1/2019");

HAVING REGARD TO the documentation on file;

HAVING REGARD TO the observations made by the Secretary
General pursuant to Article 15 of the Guarantor's
Regulation No. 1/2000 on the organization and
functioning of the office of the Guarantor for the
protection of personal data, doc. web n. 1098801;

REPORTING by Dr. Agostino Ghiglia;

PREMISE

1. Introduction.

With a complaint submitted pursuant to Article 77 of
the Regulation, twenty-eight employees of certain municipalities and
local entities of the Sicilian Region (hereinafter
"Region") complained that, on the
institutional website of the Region, the
decree D.D.G. No. XX of XX was published containing references

to the amounts regarding “the all-inclusive indemnity [...] equal to 5 years of salary, already enjoyed” by workers holding fixed-term contracts for which the regional legislator “has provided the option, in alternative to stabilization, for definitive exit from the belonging pool” (see Article 3, paragraph 19 of Regional Law No. 27 of December 29, 2016 and Article 30, paragraph 1 of Regional Law No. 5 of January 28, 2014). Attached to the decree, there was also published a list with the personal data of the affected employees, in particular: “a. belonging entity b. names of beneficiaries c. place and date of birth d. tax code e. amount to be paid to beneficiaries f. method of payment”.

On XX, the decree D.D.G. No. XX correcting the previous act of XX was also published on the Region's website, in which, “following the renunciation of some employees, the attached list was replaced with the updated one, containing, again, all the data indicated in the previous act” which again reported the same types of personal data of the interested parties.

2. The investigative activity.

With note prot. n.XX of XX, the Region - Department of Local Autonomies, in response to a request for information from the Guarantor's Office (note prot. n. XX of XX), stated, in particular, that:

“the regional legislator, with the provision contained in paragraphs 19 and 20 of Article 3 of the regional law of December 29, 2016, No. 27, has allowed workers holding fixed-term employment contracts with the Region included in the list referred to in Article 30, paragraph 1, of Regional Law No. 5/2014 the option, in alternative to the stabilization procedure, to exit from the belonging pool in exchange for the payment of an all-inclusive indemnity amounting to five years of the salary already enjoyed, to be paid in annual installments. This measure, having express legal provision, is of an optional all-inclusive indemnity nature and not of salary provided for by the employment contract, and is recognized only as a benefit to those for whom the number of years necessary to meet the pension eligibility requirements is not less than ten, and can only be requested by the interested party who opts for exit from the belonging pool”;

“once the investigation was completed and the subjects who positively passed this phase of the procedure were identified, the Department of Local Autonomies [...], with the decrees attributing the legal benefits by the Legal representative No. XX of XX and No. XX of XX, made these provisions known

together with the attachments including the lists of beneficiaries of the provisions assigned by the legislative intervention on the institutional website; in these lists, the names of the beneficiary workers were included, distinguished by a column dedicated to the personal data of each worker. These data include: the belonging entity, the surname and the name of the worker, the relevant place and date of birth, the tax code, the amount to be paid. These identifying data have made it useful for the granting Credit Institution to specifically identify each subject"; "it is worth recalling in this regard that the provision provided any service or performance. Therefore, it is essential to clarify that the nature of this indemnity does not align with the concept of compensation for damages, as it is not a remedy for any injury but rather a benefit derived from a legislative provision aimed at a specific category of individuals."

"Moreover, the payment of the indemnity serves a contributory and financial assistance function, providing an immediate economic advantage to the beneficiary who receives a sum of money without any corresponding service or performance. Consequently, it is crucial to assess whether the public administration is justified in publishing the personal data of the recipients of such benefits, given that the nature of the indemnity does not imply any infringement of rights."

"Lastly, it is important to emphasize that the publication of the data in question must be evaluated in light of the principles of necessity and proportionality, ensuring that the dissemination of personal information is limited to what is strictly necessary for the purposes of transparency and accountability in the management of public resources."

public and private by granting them a direct or indirect economic advantage exceeding 1,000 euros through the provision of incentives or benefits that result in reductions, savings, or acquisition of resources."

3. Outcome of the investigative activity.

3.1 The regulatory framework

The regulation on the protection of personal data provides that public entities, within the workplace context, may process the personal data of the data subjects, including data related to special categories, if the processing is necessary, in general, for the management of the employment relationship and to fulfill specific obligations or tasks provided by law or by Union or Member State law (Articles 6, paragraph 1, letter c), 9, paragraph 2, letter b) and 4, and 88 of the Regulation). Processing is also lawful when it is "necessary for the performance of a task carried out in the public interest or in the exercise of official authority vested in the data controller" (Article 6, paragraphs 1, letter e), 2 and 3, and Article 9, paragraph 2, letter g), of the Regulation; Article 2-ter of the Code (in the text prior to the amendments made by Legislative Decree No. 139 of October 8, 2021).

European legislation provides that "Member States may maintain or introduce more specific provisions to adapt the application of the rules of [...] the regulation concerning processing, in accordance with paragraph 1, letters c) and e), determining more precisely specific requirements for processing and other measures to ensure lawful and fair processing [...]" (Article 6, paragraph 2, of the Regulation). In this regard, it is noted that the operation of disseminating personal data (such as publication on the Internet) by public entities is permitted only when provided for by a legal norm or, in cases provided for by law, by regulation (see Article 2-ter, paragraphs 1 and 3, of the Code, in the text prior to the amendments made by Legislative Decree No. 139 of October 8, 2021).

The data controller is required, in any case, to comply with the principles regarding data protection, among which are "lawfulness, fairness, and transparency" as well as "data minimization," according to

which personal data must be “processed lawfully, fairly, and transparently in relation to the data subject” and must be “adequate, relevant, and limited to what is necessary in relation to the purposes for which they are processed” (Article 5, paragraph 1, letters a) and c), of the Regulation).

3.2 The dissemination of personal data.

As evidenced by the documents and statements made by the data controller, as well as the findings made based on the elements acquired following the investigative activity, the Region has published on its institutional website the decrees D.D.G. No. XX of XX and No. XX of XX, containing the personal data of 115 data subjects, employees of regional entities.

During the investigation, the Region stated that the publication of the lists (containing the names of the data subjects and the amounts paid to them) attached to the aforementioned decrees is based on the provisions that require the publication of acts of grant, subsidies, contributions, and the allocation of economic advantages (Articles 26 and 27 of Legislative Decree No. 33 of 2013).

In this regard, it is noted that Article 3, paragraphs 19 and 20 of Regional Law No. 27 of 2016 regulates the procedures for the stabilization of precarious personnel. This provision, on which the published lists are based, particularly regulates the modalities for exercising an option right by employees of regional public entities, within fixed-term employment contracts, allowing them to choose between the stabilization of the contract, and thus the permanent hiring of the aforementioned workers (Article 30 of Regional Law No. 5 of 2014), or alternatively the payment “of a comprehensive allowance amounting to 5 years of the salary already being received, to be paid in annual installments” (see Article 3, paragraph 19, Law No. 27 of 2016). In this context, within the framework of regulatory measures aimed at overcoming precariousness, taking into account the needs of the administration and the enhancement of acquired skills, the provision of the aforementioned “comprehensive allowance” in favor of the employee constitutes the monetary quantification as “comprehensive” compensation in lieu of permanent hiring due to the exercise of an option right by the interested parties as provided by regional law. To confirm this, it is highlighted that the amount of this “comprehensive allowance,” as reported in decree No. XX of XX, corresponds “to five years of the salary being received to be paid in annual installments.”

The National Anti-Corruption Authority – ANAC, regarding the acts referred to in Articles 26 and 27 mentioned, clarifies that “these are all those measures that, based on current legislation, are aimed at supporting a subject both public and private by granting them a direct or indirect economic advantage exceeding 1,000 euros through the provision of incentives or benefits that result in reductions, savings, or acquisition of resources.”

public and private, granting it a direct or indirect economic advantage exceeding 1,000 euros through the provision of incentives or benefits that result in exemptions, savings, or acquisition of resources,” also specifying that “considering the heterogeneity of such acts, if it is not clearly evident from the type of act or from the indications given whether a provision falls within those referred to in Articles 26 and 27 of Legislative Decree 33/2013, it is up to each administration and each entity to identify the cases that cannot be classified under the category of ‘acts granting subsidies, contributions, and economic advantages’ [...] providing] adequate justification for such choice” (on this point see the FAQs of Anac, available at the link Obligations of publication concerning acts granting subsidies, contributions, grants, and attribution of economic advantages to individuals and public and private entities (Articles 26-27, Legislative Decree 33/2013) - www.anticorruzione.it).

That said, in acknowledging the evaluations made by the Region since the preparation of the acts in question, it must be noted that the subsequent removal from the website of the aforementioned decrees and attachments, following the receipt of the warning issued by certain interested parties through their legal representative, does not appear to be consistent with the asserted obligation of such publication. In any case, regarding the aspects of competence, it should be emphasized that even the administrations and other subjects that believe they are subject to the specific obligations of publication must ensure strict compliance with the principles regarding the protection of personal data as well as the applicable sector regulations that constitute the legal basis for the specific processing

(Articles 5 letter a) and 6 paragraphs 2 and 3 of the Regulation and Article 2-ter of the Code).

In this context, in light of the combined provisions of Articles 26 and 27 of Legislative Decree No. 33 of 2013, for the purposes of fulfilling the aforementioned obligation, publication is required “in addition to the act of granting, [...] the name of the company or entity and their respective tax data or the name of another beneficiary; [...] the amount of the economic advantage granted; [...] the norm or title on which the attribution is based; [...] the office and [...] official or manager responsible for the relevant administrative procedure; [...] the method followed for identifying the beneficiary; [...] the link to the selected project and the curriculum of the appointed subject.”

In this specific case, however, although the Region proceeded with publication on the assumption of being subject to the obligation under the aforementioned Articles 26 and 27, it appears to have published types of personal data not attributable to those expressly identified by the referenced sector regulations, such as, in particular, the place and date of birth and the tax code of the interested parties, and it must therefore be considered, in this regard, that such personal data – referring, moreover, to a significant number of interested parties, namely 115 individuals, including the complainants – have been disseminated in the absence of an appropriate legal basis (see also “Guidelines on the processing of personal data, including in acts and administrative documents, carried out for the purposes of publicity and transparency on the web by public subjects and other obligated entities” of the Guarantor, provision of May 15, 2014, No. 243, web doc No. 3134436, paragraph 9 letter e)).

Finally, it is noted that the reference to Article 7-bis of Legislative Decree No. 33 of 2013 is also not relevant since “the reuse of personal data published pursuant to the aforementioned Articles 26 and 27 is not free, but subject – as established by the same Article 7 of Legislative Decree No. 33/2013 – to specific provisions [...], which do not in any way prejudice the level of protection of individuals regarding the processing of personal data” (see also the aforementioned Guidelines paragraph 6).

For all the above reasons, it must be concluded that the Region has engaged in the dissemination of personal data in the absence of an appropriate legal basis, in violation of Articles 5 and 6 of the Regulation and Article 2-ter of the Code (in the text prior to the amendments made by Law Decree No. 139 of October 8, 2021).

4. Conclusions.

In light of the evaluations mentioned above, it is noted that the statements made by the data controller during the investigation – the veracity of which may be subject to accountability under Article 168 of the Code – although deserving of consideration, do not allow for overcoming the observations notified by the Office with the initiation of the procedure and are insufficient to allow for the archiving of this procedure, as none of the cases provided for by Article 11 of the Guarantor Regulation No. 1/2019 apply.

Therefore, the preliminary evaluations of the Office are confirmed, and the unlawfulness of the processing of personal data carried out by the Region is noted for having disseminated, through online publication on its institutional website, personal data relating to numerous interested parties (115) not provided for by the sector regulations on transparency, in violation of Articles 5, paragraph 1, letters a) and c) and 6, paragraphs 1, letters c) and e) and 2 and 3, letter b) of the Regulation and Article 2-ter paragraphs 1 and 3 of the Code (in the text prior to the amendments made by Law Decree No. 139 of October 8, 2021).

The violation of the aforementioned provisions makes the administrative sanction provided for by Article 83, paragraph 5, of the Regulation applicable, pursuant to Articles 58, paragraph 2, letter i), and 83, paragraph 3, of the same Regulation, as also referenced by Article 166, paragraph 2, of the Code.

In this context, considering, in any case, that the conduct has exhausted its effects, given that the decrees D.D.G. no. XX of XX and D.D.G. no. XX of XX and the related attachments have been removed from the institutional website on XX or, as stated by the Region, following the “notice of warning and formal notice submitted by [the Lawyer...] representing 28 beneficiaries,” the conditions for the adoption of further corrective measures under Article 58, paragraph 2, of the Regulation do not

exist.

5. Adoption of the injunction order for the application of the administrative pecuniary sanction and accessory sanctions (Articles 58, paragraph 2, letter i and 83 of the Regulation; Article 166, paragraph 7, of the Code). The Guarantor, pursuant to Articles 58, paragraph 2, letter i) and 83 of the Regulation as well as Article 166 of the Code, has the power to “impose an administrative pecuniary sanction pursuant to Article 83, in addition to the [other] [corrective] measures referred to in this paragraph, or in lieu of such measures, depending on the circumstances of each individual case” and, in this context, “the Board [of the Guarantor] adopts the injunction order, which also provides for the application of the accessory administrative sanction of its publication, in whole or in part, on the Guarantor's website pursuant to Article 166, paragraph 7, of the Code” (Article 16, paragraph 1, of the Guarantor's Regulation no. 1/2019).

In this regard, taking into account Article 83, paragraph 3, of the Regulation, in this case, the violation of the aforementioned provisions is subject to the application of the administrative pecuniary sanction provided for by Article 83, paragraph 5, of the Regulation. The aforementioned administrative pecuniary sanction imposed, depending on the circumstances of each individual case, must be determined in amount taking into due account the elements provided for by Article 83, paragraph 2, of the Regulation.

In relation to the aforementioned elements, the sensitivity of the personal data, subject to online dissemination of numerous interested parties, concerning matters related to the employment relationship of employees who had exercised the right of option instead of permanent employment, as well as the date and place of birth and the tax code of each interested party, has been evaluated. It was also considered the failure to comply with the indications that, for some time, the Guarantor has provided to all public entities since 2014 with the aforementioned Guidelines and in numerous provisions on individual concrete cases adopted over the years by the Guarantor.

On the other hand, considering that the violation did not concern particular categories of personal data and that the Region acted on the assumption that it was required to publish the personal data of the interested parties - also referring to the place and date of birth and the tax code - based on the obligations established by Articles 26 and 27 of Legislative Decree 33 of 2013 and subsequently removed the aforementioned decrees from the website, albeit following a “warning and formal notice” from the Lawyer of some interested parties. It was also considered that a previous provision against the Region was adopted pursuant to Article 58, paragraph 2, letter a) of the Regulation, in relation to the processing of personal data that, if carried out, could have “likely violated the provisions of the [...] Regulation.”

By reason of the aforementioned elements, evaluated in their entirety, it is deemed appropriate to determine the amount of the pecuniary sanction at the sum of 7,000 euros (seven thousand) for the violation of Articles 5, 6 of the Regulation and 2-ter of the Code (in the text prior to the amendments made by Legislative Decree of October 8, 2021, no. 139), as an administrative pecuniary sanction deemed, pursuant to Article 83, paragraph 1, of the Regulation, effective, proportionate, and dissuasive.

Considering that the decrees and the related attachments, subject to publication, contained personal data of numerous interested parties concerning a delicate matter related to their employment relationship, it is also deemed necessary to apply the accessory sanction of publication on the Guarantor's website of this provision, as provided for by Article 166, paragraph 7 of the Code and Article 16 of the Guarantor's Regulation no. 1/2019.

Finally, it is noted that the conditions of Article 17 of Regulation no. 1/2019 are met.

ALL OF THE ABOVE, THE GUARANTOR declares, pursuant to Article 57, paragraph 1, letter f), of the Regulation, the unlawfulness of the processing carried out by the Sicilian Region, for violation of Articles 5 and 6 of the Regulation and 2-ter of the Code, in the terms set out in the motivation;

ORDERS

The Sicilian Region, represented by the legal representative pro tempore, with registered office at Palazzo D' Orleans, Piazza Indipendenza 21, 90129 Palermo (PA), Tax Code 80012000826, to pay the sum of 7,000 euros (seven thousand) as an administrative pecuniary sanction for the violations indicated in the motivation. It is represented that the offender, pursuant to Article 166, paragraph 8, of the Code, has the option to settle the dispute by payment, within 30 days, of an amount equal to half of the imposed sanction;

COMMANDS

the aforementioned Sicilian Region, in case of failure to settle the dispute pursuant to Article 166, paragraph 8, of the Code, to pay the sum of 7,000 (seven thousand) according to the methods indicated in the attachment, within 30 days from the notification of this provision, under penalty of the adoption of the consequent executive acts in accordance with Article 27 of Law no. 689/1981;

DISPOSES

pursuant to Article 166, paragraph 7, of the Code, the publication of this provision on the Guarantor's website, considering that the conditions for

pursuant to Article 17 of the Regulation of the Guarantor No. 1/2019.

In accordance with Articles 78 of the Regulation, 152 of the Code, and 10 of Legislative Decree No. 150/2011, an appeal against this provision may be filed before the ordinary judicial authority, under penalty of inadmissibility, within thirty days from the date of communication of the provision itself or within sixty days if the appellant resides abroad.

Rome, July 6, 2023

THE PRESIDENT

Stanzione

THE REPORTER

Ghiglia

THE SECRETARY GENERAL

Mattei